

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director		Wage Determination No.: 2015-4169 Revision No.: 32 Date Of Last Revision: 12/03/2025
Division of Wage Determinations		

State: New York

Area: New York Counties of Clinton, Essex, Franklin, Lewis, St Lawrence

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		18.08
01012 - Accounting Clerk II		20.29
01013 - Accounting Clerk III		22.70
01020 - Administrative Assistant		33.22
01035 - Court Reporter		21.47
01041 - Customer Service Representative I		16.06
01042 - Customer Service Representative II		17.52
01043 - Customer Service Representative III		19.67
01051 - Data Entry Operator I		17.70
01052 - Data Entry Operator II		19.32
01060 - Dispatcher, Motor Vehicle		23.38
01070 - Document Preparation Clerk		17.10
01090 - Duplicating Machine Operator		17.10
01111 - General Clerk I		16.23
01112 - General Clerk II		17.71
01113 - General Clerk III		19.88
01120 - Housing Referral Assistant		23.11
01141 - Messenger Courier		17.25
01191 - Order Clerk I		19.21
01192 - Order Clerk II		20.96
01261 - Personnel Assistant (Employment) I		19.09
01262 - Personnel Assistant (Employment) II		21.36
01263 - Personnel Assistant (Employment) III		23.80
01270 - Production Control Clerk		23.19
01290 - Rental Clerk		18.28
01300 - Scheduler, Maintenance		18.52
01311 - Secretary I		18.52
01312 - Secretary II		20.72
01313 - Secretary III		23.11
01320 - Service Order Dispatcher		20.91
01410 - Supply Technician		33.22
01420 - Survey Worker		20.09
01460 - Switchboard Operator/Receptionist		18.82
01531 - Travel Clerk I		15.50
01532 - Travel Clerk II		16.69
01533 - Travel Clerk III		17.91
01611 - Word Processor I		17.22
01612 - Word Processor II		19.33
01613 - Word Processor III		21.62
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		23.74
05010 - Automotive Electrician		21.93

05040 - Automotive Glass Installer	20.76
05070 - Automotive Worker	20.76
05110 - Mobile Equipment Servicer	18.44
05130 - Motor Equipment Metal Mechanic	23.02
05160 - Motor Equipment Metal Worker	20.76
05190 - Motor Vehicle Mechanic	23.02
05220 - Motor Vehicle Mechanic Helper	17.20
05250 - Motor Vehicle Upholstery Worker	19.60
05280 - Motor Vehicle Wrecker	20.76
05310 - Painter, Automotive	21.93
05340 - Radiator Repair Specialist	20.76
05370 - Tire Repairer	18.44
05400 - Transmission Repair Specialist	23.02
07000 - Food Preparation And Service Occupations	
07010 - Baker	17.15
07041 - Cook I	19.32
07042 - Cook II	21.75
07070 - Dishwasher	15.26
07130 - Food Service Worker	16.56
07210 - Meat Cutter	20.49
07260 - Waiter/Waitress	18.30
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	19.69
09040 - Furniture Handler	14.65
09080 - Furniture Refinisher	19.69
09090 - Furniture Refinisher Helper	16.13
09110 - Furniture Repairer, Minor	17.60
09130 - Upholsterer	19.69
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	17.16
11060 - Elevator Operator	17.68
11090 - Gardener	22.86
11122 - Housekeeping Aide	17.68
11150 - Janitor	17.68
11210 - Laborer, Grounds Maintenance	18.23
11240 - Maid or Houseman	16.71
11260 - Pruner	16.66
11270 - Tractor Operator	21.32
11330 - Trail Maintenance Worker	18.23
11360 - Window Cleaner	19.35
12000 - Health Occupations	
12010 - Ambulance Driver	19.89
12011 - Breath Alcohol Technician	24.79
12012 - Certified Occupational Therapist Assistant	28.96
12015 - Certified Physical Therapist Assistant	27.50
12020 - Dental Assistant	21.75
12025 - Dental Hygienist	39.78
12030 - EKG Technician	28.52
12035 - Electroneurodiagnostic Technologist	28.52
12040 - Emergency Medical Technician	19.89
12071 - Licensed Practical Nurse I	22.17
12072 - Licensed Practical Nurse II	24.79
12073 - Licensed Practical Nurse III	27.65
12100 - Medical Assistant	19.94
12130 - Medical Laboratory Technician	35.95
12160 - Medical Record Clerk	22.55
12190 - Medical Record Technician	25.22
12195 - Medical Transcriptionist	22.13
12210 - Nuclear Medicine Technologist	54.49
12221 - Nursing Assistant I	14.40
12222 - Nursing Assistant II	16.20
12223 - Nursing Assistant III	17.68
12224 - Nursing Assistant IV	19.84
12235 - Optical Dispenser	29.83
12236 - Optical Technician	22.17

12250 - Pharmacy Technician	17.65
12280 - Phlebotomist	19.61
12305 - Radiologic Technologist	35.75
12311 - Registered Nurse I	27.92
12312 - Registered Nurse II	34.14
12313 - Registered Nurse II, Specialist	34.14
12314 - Registered Nurse III	41.31
12315 - Registered Nurse III, Anesthetist	41.31
12316 - Registered Nurse IV	49.53
12317 - Scheduler (Drug and Alcohol Testing)	30.72
12320 - Substance Abuse Treatment Counselor	26.85
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	21.76
13012 - Exhibits Specialist II	26.96
13013 - Exhibits Specialist III	32.98
13041 - Illustrator I	21.76
13042 - Illustrator II	26.96
13043 - Illustrator III	32.98
13047 - Librarian	29.86
13050 - Library Aide/Clerk	15.69
13054 - Library Information Technology Systems Administrator	26.96
13058 - Library Technician	18.38
13061 - Media Specialist I	19.46
13062 - Media Specialist II	21.76
13063 - Media Specialist III	24.27
13071 - Photographer I	19.46
13072 - Photographer II	21.76
13073 - Photographer III	26.96
13074 - Photographer IV	32.98
13075 - Photographer V	39.90
13090 - Technical Order Library Clerk	19.70
13110 - Video Teleconference Technician	23.87
14000 - Information Technology Occupations	
14041 - Computer Operator I	18.01
14042 - Computer Operator II	20.14
14043 - Computer Operator III	22.45
14044 - Computer Operator IV	24.95
14045 - Computer Operator V	27.63
14071 - Computer Programmer I	(see 1) 21.26
14072 - Computer Programmer II	(see 1) 26.33
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	18.01
14160 - Personal Computer Support Technician	24.95
14170 - System Support Specialist	31.47
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	33.73
15020 - Aircrew Training Devices Instructor (Rated)	40.81
15030 - Air Crew Training Devices Instructor (Pilot)	48.93
15050 - Computer Based Training Specialist / Instructor	33.73
15060 - Educational Technologist	33.18
15070 - Flight Instructor (Pilot)	48.93
15080 - Graphic Artist	27.26
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	48.93
15086 - Maintenance Test Pilot, Rotary Wing	48.93
15088 - Non-Maintenance Test/Co-Pilot	48.93
15090 - Technical Instructor	23.26
15095 - Technical Instructor/Course Developer	28.45
15110 - Test Proctor	18.78
15120 - Tutor	18.78
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	

16010 - Assembler	17.23
16030 - Counter Attendant	17.23
16040 - Dry Cleaner	19.69
16070 - Finisher, Flatwork, Machine	17.23
16090 - Presser, Hand	17.23
16110 - Presser, Machine, Drycleaning	17.23
16130 - Presser, Machine, Shirts	17.23
16160 - Presser, Machine, Wearing Apparel, Laundry	17.23
16190 - Sewing Machine Operator	20.51
16220 - Tailor	21.33
16250 - Washer, Machine	18.05
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	30.36
19040 - Tool And Die Maker	35.61
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	26.62
21030 - Material Coordinator	23.19
21040 - Material Expediter	23.19
21050 - Material Handling Laborer	22.73
21071 - Order Filler	18.49
21080 - Production Line Worker (Food Processing)	26.62
21110 - Shipping Packer	20.85
21130 - Shipping/Receiving Clerk	20.85
21140 - Store Worker I	16.74
21150 - Stock Clerk	21.47
21210 - Tools And Parts Attendant	26.62
21410 - Warehouse Specialist	26.62
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	33.15
23019 - Aircraft Logs and Records Technician	27.13
23021 - Aircraft Mechanic I	31.87
23022 - Aircraft Mechanic II	33.15
23023 - Aircraft Mechanic III	34.39
23040 - Aircraft Mechanic Helper	23.81
23050 - Aircraft, Painter	30.36
23060 - Aircraft Servicer	27.13
23070 - Aircraft Survival Flight Equipment Technician	30.36
23080 - Aircraft Worker	28.75
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	28.75
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	31.87
23110 - Appliance Mechanic	29.12
23120 - Bicycle Repairer	25.54
23125 - Cable Splicer	52.87
23130 - Carpenter, Maintenance	27.34
23140 - Carpet Layer	28.75
23160 - Electrician, Maintenance	35.15
23181 - Electronics Technician Maintenance I	29.12
23182 - Electronics Technician Maintenance II	30.76
23183 - Electronics Technician Maintenance III	32.29
23260 - Fabric Worker	27.13
23290 - Fire Alarm System Mechanic	27.69
23310 - Fire Extinguisher Repairer	25.54
23311 - Fuel Distribution System Mechanic	44.45
23312 - Fuel Distribution System Operator	35.67
23370 - General Maintenance Worker	22.99
23380 - Ground Support Equipment Mechanic	31.87
23381 - Ground Support Equipment Servicer	27.13
23382 - Ground Support Equipment Worker	28.75
23391 - Gunsmith I	25.54
23392 - Gunsmith II	28.75
23393 - Gunsmith III	31.87
23410 - Heating, Ventilation And Air-Conditioning Mechanic	29.18

23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	30.34
23430 - Heavy Equipment Mechanic	26.36
23440 - Heavy Equipment Operator	28.09
23460 - Instrument Mechanic	31.87
23465 - Laboratory/Shelter Mechanic	30.36
23470 - Laborer	22.73
23510 - Locksmith	30.36
23530 - Machinery Maintenance Mechanic	31.28
23550 - Machinist, Maintenance	26.53
23580 - Maintenance Trades Helper	19.04
23591 - Metrology Technician I	31.87
23592 - Metrology Technician II	33.15
23593 - Metrology Technician III	34.39
23640 - Millwright	31.87
23710 - Office Appliance Repairer	26.93
23760 - Painter, Maintenance	24.18
23790 - Pipefitter, Maintenance	33.24
23810 - Plumber, Maintenance	30.57
23820 - Pneudraulic Systems Mechanic	31.87
23850 - Rigger	31.87
23870 - Scale Mechanic	28.75
23890 - Sheet-Metal Worker, Maintenance	33.19
23910 - Small Engine Mechanic	21.56
23931 - Telecommunications Mechanic I	30.33
23932 - Telecommunications Mechanic II	31.54
23950 - Telephone Lineman	37.66
23960 - Welder, Combination, Maintenance	24.40
23965 - Well Driller	31.87
23970 - Woodcraft Worker	31.87
23980 - Woodworker	25.54
24000 - Personal Needs Occupations	
24550 - Case Manager	20.21
24570 - Child Care Attendant	16.01
24580 - Child Care Center Clerk	19.96
24610 - Chore Aide	17.82
24620 - Family Readiness And Support Services Coordinator	20.21
24630 - Homemaker	20.21
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	30.31
25040 - Sewage Plant Operator	26.71
25070 - Stationary Engineer	30.31
25190 - Ventilation Equipment Tender	22.65
25210 - Water Treatment Plant Operator	26.71
27000 - Protective Service Occupations	
27004 - Alarm Monitor	23.47
27007 - Baggage Inspector	19.58
27008 - Corrections Officer	33.03
27010 - Court Security Officer	31.67
27030 - Detection Dog Handler	21.90
27040 - Detention Officer	33.03
27070 - Firefighter	30.31
27101 - Guard I	19.58
27102 - Guard II	21.90
27131 - Police Officer I	30.68
27132 - Police Officer II	34.09
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	20.98
28042 - Carnival Equipment Repairer	22.50
28043 - Carnival Worker	16.40
28210 - Gate Attendant/Gate Tender	22.20
28310 - Lifeguard	16.50
28350 - Park Attendant (Aide)	24.83
28510 - Recreation Aide/Health Facility Attendant	18.12

28515 - Recreation Specialist	30.75
28630 - Sports Official	19.77
28690 - Swimming Pool Operator	25.33
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	28.75
29020 - Hatch Tender	28.75
29030 - Line Handler	28.75
29041 - Stevedore I	27.13
29042 - Stevedore II	30.36
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	47.53
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	32.78
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	36.10
30021 - Archeological Technician I	20.14
30022 - Archeological Technician II	22.53
30023 - Archeological Technician III	27.91
30030 - Cartographic Technician	27.91
30040 - Civil Engineering Technician	27.91
30051 - Cryogenic Technician I	30.91
30052 - Cryogenic Technician II	34.14
30061 - Drafter/CAD Operator I	20.14
30062 - Drafter/CAD Operator II	22.53
30063 - Drafter/CAD Operator III	25.11
30064 - Drafter/CAD Operator IV	30.91
30081 - Engineering Technician I	17.82
30082 - Engineering Technician II	20.00
30083 - Engineering Technician III	22.39
30084 - Engineering Technician IV	27.73
30085 - Engineering Technician V	33.91
30086 - Engineering Technician VI	41.03
30090 - Environmental Technician	24.36
30095 - Evidence Control Specialist	27.91
30210 - Laboratory Technician	25.31
30221 - Latent Fingerprint Technician I	30.91
30222 - Latent Fingerprint Technician II	34.14
30240 - Mathematical Technician	27.91
30361 - Paralegal/Legal Assistant I	23.21
30362 - Paralegal/Legal Assistant II	28.75
30363 - Paralegal/Legal Assistant III	35.16
30364 - Paralegal/Legal Assistant IV	42.54
30375 - Petroleum Supply Specialist	34.14
30390 - Photo-Optics Technician	27.91
30395 - Radiation Control Technician	34.14
30461 - Technical Writer I	27.91
30462 - Technical Writer II	34.14
30463 - Technical Writer III	41.31
30491 - Unexploded Ordnance (UXO) Technician I	30.21
30492 - Unexploded Ordnance (UXO) Technician II	36.55
30493 - Unexploded Ordnance (UXO) Technician III	43.81
30494 - Unexploded (UXO) Safety Escort	30.21
30495 - Unexploded (UXO) Sweep Personnel	30.21
30501 - Weather Forecaster I	30.91
30502 - Weather Forecaster II	37.60
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2) 25.11
30621 - Weather Observer, Senior	(see 2) 27.91
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	36.55
31020 - Bus Aide	14.55
31030 - Bus Driver	18.70
31043 - Driver Courier	19.78
31260 - Parking and Lot Attendant	15.46
31290 - Shuttle Bus Driver	17.49
31310 - Taxi Driver	14.79
31361 - Truckdriver, Light	21.21

31362 - Truckdriver, Medium	22.54
31363 - Truckdriver, Heavy	27.10
31364 - Truckdriver, Tractor-Trailer	27.10
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.82
99030 - Cashier	15.73
99050 - Desk Clerk	17.02
99095 - Embalmer	29.58
99130 - Flight Follower	30.21
99251 - Laboratory Animal Caretaker I	18.06
99252 - Laboratory Animal Caretaker II	19.36
99260 - Marketing Analyst	29.77
99310 - Mortician	29.58
99410 - Pest Controller	25.62
99510 - Photofinishing Worker	15.88
99710 - Recycling Laborer	22.47
99711 - Recycling Specialist	26.28
99730 - Refuse Collector	20.55
99810 - Sales Clerk	16.72
99820 - School Crossing Guard	15.93
99830 - Survey Party Chief	31.47
99831 - Surveying Aide	18.20
99832 - Surveying Technician	24.95
99840 - Vending Machine Attendant	23.16
99841 - Vending Machine Repairer	27.96
99842 - Vending Machine Repairer Helper	23.16

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-

covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of twelve paid holidays per year: New Year's Day, Martin Luther King Jr's Birthday, Washington's Birthday, Good Friday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable

relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."